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FILED

2008 FEB 14 PM 3:53

CLERK US DISTRICT COURT
SOUTHERN DISTRICT OF CALIFORNIA

BY  DEPUTY

8 **UNITED STATES DISTRICT COURT**
9 **FOR THE SOUTHERN DISTRICT OF CALIFORNIA**

11 NORMA KIRSCH; AMI ABBOTT; MANDY
12 ANDERSON; and the ESTATE OF RICHARD
13 KIRSCH, deceased;

14 Plaintiffs,

15 vs.

16 UNITED STATES, and DOES 1 through 10,
17 inclusive,

18 Defendants.
19

General Civil
Case No.

COMPLAINT FOR DAMAGES

JURY TRIAL DEMANDED

'08 CV 0298 DMS NLS

20 **JURISDICTION**

- 21
- 22 1. This is an action brought under 28 U.S.C. §2671 et seq. to recover damages against the UNITED
- 23 STATES for the death of plaintiff's decedent, RICHARD KIRSCH, caused by the negligent
- 24 operation of a government vehicle utilized by a U.S. Customs and Border Protection agent,
- 25 EFRAIN BLAS, while acting within the course and scope of his employment.
- 26 2. The jurisdiction of this Court is predicated on 28 U.S.C. §1346(b).
- 27 3. A substantial part of the events giving rise to this action occurred in San Diego County,
- 28 California. Venue is therefore proper under 28 U.S.C. §1391(b).

PARTIES

4. NORMA KIRSCH ("Plaintiff") is, and at all times herein mentioned was, a citizen of the United States and a resident of San Diego County, State of California.
5. AMI ABBOTT ("Plaintiff") is, and at all times herein mentioned was, a citizen of the United States and a resident of San Diego County, California.
6. MANDY ANDERSON ("Plaintiff") is, and at all times mentioned was, a citizen of the United States and a resident of San Diego County, California.
7. Plaintiff Norma Kirsch is the widow of RICHARD KIRSCH, and his heir at law, and this action is brought for the benefit of said heir. Plaintiffs Ami Abbott and Mandy Anderson are the daughters of RICHARD KIRSCH, and also his heirs at law, and this action is also brought for their benefit as said heirs.
8. Defendant UNITED STATES ("Defendant") is a party and is being sued by virtue of it employing EFRAIN BLAS, who, at all times relevant herein, was a U.S. Customs and Border Protection agent, acting within the course and scope of his employment at the time of the incident giving rise to this action.
9. Plaintiffs are ignorant of the true names and capacities of defendants sued herein as Does 1-10, inclusive and therefore sue these defendants by such fictitious names. Plaintiffs will amend this complaint to allege their true names and capacities when ascertained. Plaintiffs are informed and believe and thereon allege that each fictitiously named defendant is responsible in some manner for the occurrences herein alleged, and that plaintiffs' and decedent's injuries as herein alleged were proximately caused by their acts.
10. Plaintiffs are informed and believe and thereon allege that at all times herein mentioned, each of the defendants sued herein as DOES 1-10 was the agent and employee of the remaining defendants and was at all times acting within the purpose and scope of such agency and employment.

GENERAL ALLEGATIONS

11. On or about November 24, 2006, decedent Richard Kirsch was driving his motorcycle eastbound on California State Route 94. When decedent approached Community Building Road in the county of San Diego, he was passed by defendant's employee, Efrain Blas.

1 12. Efrain Blas was also driving eastbound on SR-94 at and around the same area as decedent as
2 both were proceeding eastbound. At the same time and place, Efrain Blas was driving a vehicle
3 owned by U.S. Customs and Border Protection ("Border Patrol") with the express and/or implied
4 permission and consent of Border Patrol.

5 13. At said time and place, Efrain Blas negligently and recklessly drove the Border Patrol vehicle so
6 as to violently collide with decedent's motorcycle, causing decedent to lose control and veer off
7 the road, which ultimately caused decedent's death.

8 14. On or about February 5, 2007, plaintiffs filed a tort claim for wrongful death, pursuant to the
9 Federal Tort Claims Act, with U.S. Customs and Border Protection. Plaintiffs' claim was
10 rejected in its entirety on or about August 21, 2007. The rejection letter is attached as exhibit 1.

11 **FIRST CAUSE OF ACTION**

12 CLAIM FOR DAMAGES UNDER 28 U.S.C. §2671 ET SEQ. FOR NEGLIGENCE OF A
13 GOVERNMENT EMPLOYEE ACTING WITHIN THE COURSE AND SCOPE OF EMPLOYMENT
14 *(BY PLAINTIFFS AGAINST DEFENDANT UNITED STATES)*

15 15. Plaintiffs repeat and reiterate each and every allegation set forth in paragraphs 1 through 14 as if
16 more fully set forth herein.

17 16. Plaintiffs are informed and believe, and thereon allege, that at all times mentioned herein,
18 defendant employed Efrain Blas as a Border Patrol agent, and was employed in such capacity at
19 the time of the incident that is the subject of this suit.

20 17. Plaintiffs are further informed and believe, and thereon allege, that Mr. Blas was driving a
21 Border Patrol vehicle while on-duty in the course and scope of his employment as a Border
22 Patrol Agent, and proceeded eastbound on SR-94 in such capacity at the time of this incident.

23 18. Mr. Blas' negligent operation of a Border Patrol vehicle resulted in the death of plaintiffs'
24 decedent, thereby resulting in plaintiff's lost care, comfort, support, solace, attention, and
25 services of decedent, all in a sum to be proven at trial.

26 19. As a further result of the negligence and carelessness of Mr. Blas, and the resulting death of
27 decedent, decedent's Estate incurred medical and incidental expenses which will be shown
28 according to proof.

1 20. As a further result of the negligence and carelessness of Mr. Blas, and the resulting death of
2 decedent, plaintiff incurred funeral and burial expenses which will be shown according to proof.
3

4 WHEREFORE, plaintiff prays judgment as follows:

- 5 1. For medical and related expenses according to proof;
6 2. For funeral and burial expenses according to proof;
7 3. For pecuniary damages due to the loss of the care, comfort, support, solace, attention, and
8 services of decedent according to proof;
9 4, For costs of suit herein incurred; and
10 5. For such other and further relief as the court may deem just and proper.

11 **PLAINTIFFS DEMAND A JURY TRIAL**

12 Dated: February 4, 2008

HOEY & MORGAN, LLP

13
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15 By:


16 ROBERT HAMPARYAN
17 Attorneys for Plaintiff
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EXHIBIT 1

U.S. Department of Homeland Security
Washington, DC 20229

SO-2007-0146-SVF



U.S. Customs and
Border Protection

August 21, 2007

Giles S. Townsend, Esquire
Pacific Law Center
4225 Executive Square, Suite 1550
La Jolla, California 92037

Certified Mail - Return Receipt Requested

RE: FTCA Claim on behalf of Richard Kirsch, decedent/Norma Kirsch

Dear Mr. Townsend:

This is in reference to the tort claim you submitted for wrongful death on behalf of Richard Kirsch, decedent, in the amount of \$10 million. After careful review of all of the evidence in this case, it is my decision to deny this claim.

Any recovery under the Federal Tort claims Act must be predicated upon the negligent or wrongful act or omission of a government employee acting within the scope of federal employment. *See generally*, 28 U.S.C 2671 *et seq.* In this case, the claimant has failed to establish that Mr. Kirsch's death was caused by a federal employee acting within the scope of employment. As such, this claim must be denied in its entirety.

Please be advised that if you are dissatisfied with this decision, you may file suit in an appropriate United States District Court no later than six months after the date of the mailing of this notification.

Sincerely,

A handwritten signature in black ink that reads "Mark S. Borkowski".

Mark S. Borkowski
Executive Director for Mission Support
U.S. Border Patrol

**UNITED STATES
DISTRICT COURT**
SOUTHERN DISTRICT OF CALIFORNIA
SAN DIEGO DIVISION

147672 - BH

**February 14, 2008
15:48:51**

Civ Fil Non-Pris

USAO #: 08CV0298 CIVIL FILING

Judge.: DANA M SABRAW

Amount.: \$350.00 CK

Check#: BC# 2279

Total-> \$350.00

**FROM: KIRSCH ET AL V. U.S.A.
CIVIL FILING**

JS 44 (Rev. 12/07)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON THE REVERSE OF THE FORM.)

I. (a) PLAINTIFFS

Norma Kirsch; Ami Abbot; Mandy Anderson; and the Estate of Richard Kirsch, deceased

(b) County of Residence of First Listed Plaintiff San Diego
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorney's (Firm Name, Address, and Telephone Number)

Robert Hamparyan; Hoey & Morgan, LLP, 4275 Executive Square, Suite 920, La Jolla, CA 92037; 858-550-1002

DEFENDANTS

United States, Does 1 through 10, inclusive

County of Residence of First Listed Defendant N/A
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE LAND INVOLVED.

Attorneys (If Known)

08 CV 0298 DMS NLS

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
☒ 2 U.S. Government Defendant
☐ 3 Federal Question (U.S. Government Not a Party)
☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- (For Diversity Cases Only)
- | | | | | | |
|---|----------------------------|----------------------------|---|----------------------------|----------------------------|
| Citizen of This State | ☐ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☒ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury PERSONAL INJURY ☐ 362 Personal Injury - Med. Malpractice ☐ 365 Personal Injury - Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 610 Agriculture ☐ 620 Other Food & Drug ☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 630 Liquor Laws ☐ 640 R.R. & Truck ☐ 650 Airline Regs. ☐ 660 Occupational Safety/Health ☐ 690 Other	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 810 Selective Service ☐ 850 Securities/Commodities/Exchange ☐ 875 Customer Challenge 12 USC 3410 ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 892 Economic Stabilization Act ☐ 893 Environmental Matters ☐ 894 Energy Allocation Act ☐ 895 Freedom of Information Act ☐ 900 Appeal of Fee Determination Under Equal Access to Justice ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 444 Welfare ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 440 Other Civil Rights	PRISONER PETITIONS ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition		

V. ORIGIN

(Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
☐ 2 Removed from State Court
☐ 3 Remanded from Appellate Court
☐ 4 Reinstated or Reopened
☐ 5 Transferred from another district (specify)
☐ 6 Multidistrict Litigation
☐ 7 Appeal to District Judge from Magistrate Judgment

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
28 U.S.C. Sec. 2671 et seq.

Brief description of cause:

Border Patrol Agent's negligent driving killed plaintiffs' husband and father

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE

02/14/2008

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT #

147672

AMOUNT

\$350

APPLYING IFP

JUDGE

MAG. JUDGE

2/14/08 BH

INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44**Authority For Civil Cover Sheet**

The JS 44 civil cover sheet and the information contained herein neither replaces nor supplements the filings and service of pleading or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. Consequently, a civil cover sheet is submitted to the Clerk of Court for each civil complaint filed. The attorney filing a case should complete the form as follows:

I. (a) Plaintiffs-Defendants. Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.

(b) County of Residence. For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at the time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land condemnation cases, the county of residence of the "defendant" is the location of the tract of land involved.)

(c) Attorneys. Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment, noting in this section "(see attachment)".

II. Jurisdiction. The basis of jurisdiction is set forth under Rule 8(a), F.R.C.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.

United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here.

United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box.

Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and box 1 or 2 should be marked.

Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below; federal question actions take precedence over diversity cases.)

III. Residence (citizenship) of Principal Parties. This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.

IV. Nature of Suit. Place an "X" in the appropriate box. If the nature of suit cannot be determined, be sure the cause of action, in Section VI below, is sufficient to enable the deputy clerk or the statistical clerks in the Administrative Office to determine the nature of suit. If the cause fits more than one nature of suit, select the most definitive.

V. Origin. Place an "X" in one of the seven boxes.

Original Proceedings. (1) Cases which originate in the United States district courts.

Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441. When the petition for removal is granted, check this box.

Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.

Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.

Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.

Multidistrict Litigation. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407. When this box is checked, do not check (5) above.

Appeal to District Judge from Magistrate Judgment. (7) Check this box for an appeal from a magistrate judge's decision.

VI. Cause of Action. Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity.** Example: U.S. Civil Statute: 47 USC 553
Brief Description: Unauthorized reception of cable service

VII. Requested in Complaint. Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.

Demand. In this space enter the dollar amount (in thousands of dollars) being demanded or indicate other demand such as a preliminary injunction.

Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.

VIII. Related Cases. This section of the JS 44 is used to reference related pending cases if any. If there are related pending cases, insert the docket numbers and the corresponding judge names for such cases.

Date and Attorney Signature. Date and sign the civil cover sheet.